

STATE OF NEW YORK

7001--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. HYNDMAN -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring manufacturers of synthetic braiding hair, weaves, and extensions to disclose all ingredients used in the manufacturing of such products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 391-y to read as follows:

3 § 391-y. Braiding hair, weaves, and extensions labeling. 1. For the
4 purposes of this section, the following terms shall have the following
5 meanings:

6 a. "Synthetic braiding hair, weaves, and extensions" shall mean hair
7 extensions, wigs, and other hairpieces which contain synthetic hair
8 extensions, synthetic fibers, synthetic blended fibers, or decorative
9 hair adornments or have been manufactured or treated with any chemicals;

10 b. "Manufacturer" shall mean a person, firm, association, partnership
11 or corporation who manufactures any synthetic braiding hair, weaves, or
12 extensions or whose brand name is affixed to the product. In the case of
13 a product that was imported into the United States, "manufacturer"
14 includes the importer or first domestic distributor of the product if
15 the entity who currently manufactures or assembles the product or whose
16 brand name is affixed to the product does not have a presence in the
17 United States;

18 c. "Chemical" shall mean a substance with a distinct molecular compo-
19 sition or a group of structurally related substances and includes the
20 breakdown products of the substance or substances that form through
21 decomposition, degradation or metabolism;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 d. "Carcinogen" shall mean any chemical identified as:
2 (i) a "Group 1 carcinogen" or "Group 2A carcinogen" by the World
3 Health Organization or International Agency for Research on Cancer;
4 (ii) "known to be a human carcinogen" and "reasonably anticipated to
5 be a human carcinogen" by the Secretary of the United States Department
6 of Health and Human Services pursuant to the Public Health Service Act,
7 42 United States Code, Section 241(b)(4), as amended; and
8 (iii) "Group A carcinogens" or "Group B carcinogens" by the United
9 States Environmental Protection Agency; and

10 e. "Reproductive toxicant" is any chemical identified as a reproduc-
11 tive or a developmental toxicant by the United States Department of
12 Health and Human Services, National Toxicology Program, Center for the
13 Evaluation of Risks to Human Reproduction.

14 2. a. Any synthetic braiding hair, weaves, or extensions being offered
15 for sale in the state that contains a carcinogen or reproductive toxic-
16 ant shall provide a clear and conspicuous warning label displayed on
17 the packaging or product itself, which shall be printed in type no less
18 than size twelve-point font, that notifies the consumer at the time of
19 the sale that such synthetic braiding hair, weaves or extensions
20 contains such chemicals. The warning label shall state:

21 (i) if a product contains a carcinogen: "This product contains a chem-
22 ical known to cause cancer";

23 (ii) if a product contains a reproductive toxicant: "This product
24 contains a chemical known to cause birth defects or other reproductive
25 harm"; or

26 (iii) if a product contains both a carcinogen and a reproductive toxic-
27 ant: "This product contains chemicals known to cause cancer and birth
28 defects or other reproductive harm".

29 b. Manufacturers shall be responsible for ensuring that all synthetic
30 braiding hair, weaves, or extensions display the warning label as
31 required by this subdivision.

32 3. Whenever there shall be a violation of this section, an application
33 may be made by the attorney general in the name of the people of the
34 state of New York to a court or justice having jurisdiction by a special
35 proceeding to issue an injunction, and upon notice to the defendant of
36 not less than five days, to enjoin and restrain the continuance of such
37 violation; and if it shall appear to the satisfaction of the court or
38 justice that the defendant has, in fact, violated this section, an
39 injunction may be issued by such court or justice, enjoining and
40 restraining any further violation, without requiring proof that any
41 person has, in fact, been injured or damaged thereby. Whenever the court
42 shall determine that a violation of this section has occurred, the court
43 may impose a civil penalty up to two hundred fifty dollars per unit for
44 the first offense and up to five hundred dollars per unit for each
45 subsequent offense. In connection with any such proposed application,
46 the attorney general is authorized to take proof and make a determi-
47 nation of the relevant facts and to issue subpoenas in accordance with
48 the civil practice law and rules.

49 § 2. This act shall take effect eighteen months after it shall have
50 become a law. Effective immediately, the addition, amendment and/or
51 repeal of any rule or regulation necessary for the implementation of
52 this act on its effective date are authorized to be made and completed
53 on or before such effective date.